

Kishan Lal vs Smt. Anita And Another on 24 January, 2019

Author: R.C. Khulbe

Bench: R.C. Khulbe

IN THE HIGH COURT OF UTTARAKHAND AT NAINITAL

Writ Petition (M/S) No.248 of 2019

Kishan Lal

..... Petitioner

Versus

Smt. Anita and another

....Respondents

Mr. Amar Murti Shukla and Ms. Lata Negi, learned Advocates
for the petitioner.

Hon'ble R.C. Khulbe, J.

Heard learned counsel for the petitioner.

2. This petition under Article 227 of the Constitution of India has been filed for the following relief:-

I. Issue a suitable writ, order or direction to expedite the disposal of Original case no.237 of 2015 "Kishan Lal Vs. Smt. Anita" under Section 13 of Hindu Marriage Act, 1955 pending before the court of learned Additional Principal Judge, Family Court Dehradun, District Dehradun as expeditiously as possible, or within the time stipulated by this Court or as stipulated under Section 21 (B) (2) of Hindu Marriage Act.

3. It is argued by the learned counsel for the petitioner that the matter is pending since 2015 and must be decided as early as possible.

4. From the perusal of the records submitted by the petitioner it would reveal that the matter is pending since 23.03.2015 and from the order sheets it is clear that 03.01.2019 was fixed for cross-examination of the PW-1.

5. Record shows that the case is an old one and it should be decided as early as possible but the matter is pending almost for the last three and half years.

6. Hence, it is directed to the learned Additional Principal Judge, Family Court Dehradun, District Dehradun to decide the above Original case no.237 of 2015 "Kishan Lal Vs. Smt. Anita" under Section 13 of Hindu Marriage Act, 1955 within a period of six months from today.

7. The present petition is, accordingly, disposed of.

8. Pending application, if any, also stands disposed of.

(R.C. Khulbe, J.) Vacation Judge 24.01.2019 Sukhbant